

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

WENJING MITSCHA,

Petitioner

VS.

ANDREW EDWARD MITSCHA,

Respondent

) Case Number: FDV-25-818435

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: MOTION FOR MY PARENTS FOR A VISITATION WITH MY SON;
OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Wenjing Mitscha (Mother) and Respondent Andrew Mitscha (Father) have one minor child together, Edward (DOB 02/06/2022, age 4). Mother has sole legal and physical custody of Edward.
- 2) On 9/3/2025, Father filed a Request for Order for a Modification of a Domestic Violence Restraining Order (DVRO) that was issued against him so that he would be allowed unsupervised visitation with Edward on Saturdays from 8AM to 6PM.
- 3) On 10/13/2025, the parties appeared and were referred to Family Court Services for mediation with a return date of 1/13/2026.
- 4) On 12/30/2025, Mother filed a Memorandum of Points and Authorities stating that pursuant to a 12/18/2024 order after hearing of her DVRO request, Father is to have supervised visits with Edward for one hour in San Francisco every two weeks and he is to pay 100% of the cost.

- 1 5) At the 1/13/2026 hearing, the Court (Judge Pro Tem Martin Triano) ordered, among other things,
2 that Father shall have supervised visits through Rally Family Visitation Services (Rally) for one
3 hour every other weekend subject to Rally's availability, with Father to pay 100% of the Rally
4 costs. The Court ordered that Father may communicate with Mother's counsel via email
5 regarding family law matters only. The Court set a review hearing for 4/28/2026.
- 6 6) On 4/13/2026, Father filed a declaration stating he is currently engaged in anger management
7 classes and would like his parents to supervise his visits with Edward. On 4/20/2026, Mother
8 filed declarations regarding communications from Father. Mother stated that there is a DVRO and
9 14 San Francisco criminal matters pending against Father for his repeated violations of the
10 DVRO.
- 11 7) The parties appeared on 4/28/2026 before Judge Donna Petre. Father left the courtroom during
12 the hearing, and the matter was continued to 7/9/2026.
- 13 8) On 6/29/2026, Father filed a request for his parents to visit Edward. He states he completed the
14 26-hour anger management course and attached his certificate of completion to his declaration.
15 Father states that he registered with Rally and received confirmation on 5/29/2026 that Rally had
16 his paperwork.
- 17 9) On 6/30/2026, Mother filed a Supplemental Attorney Declaration of attorney Karine Cargo, who
18 states that Father has made many disparaging comments to her and has made racist comments at a
19 prior hearing. On 6/30/2026, Mother's attorney, Mia Ragent, filed a Declaration of Counsel in
20 Support of Mother's update, stating that she has witnessed Father's abusive behavior and that his
21 completion of an anger management program and his alleged rehabilitation is inconsistent with
22 his behavior.
- 23 10) On 7/1/2026, a Rally coordinator submitted a case update stating that Father contacted Rally on
24 4/29/2026 and that Rally received Father's intake documents on 5/27/2026. Rally reported that
25 because both parties had not completed the intake interview and orientation and 6 months had
26 passed since the Rally order, the case is currently inactive and the parties are required to complete
27 a new intake process before visits can be scheduled or the parties can be placed on the waitlist, as
28 needed.
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1 **B. Findings and Orders**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.
- 6 2) The Court finds it is in the child's best interests to maintain the current custody and parenting time
7 order without modification. To restart the Rally process, the parties are ordered to contact Rally
8 on or before 7/12/2026 to begin the process of completing their intake papers, intake interview,
9 and orientation. The parties shall provide to Rally as many available dates and times as they can
10 for visits so that they will have a better chance to obtain a visitation day/time. The matter is set
11 for a review hearing on the status of Rally visits on **11/10/2026 at 9AM in Department 404** to
12 give sufficient time for the visits to begin. At least 10 days before the review hearing, the parties
13 shall file and serve update declarations informing the Court how visits are going and what their
14 requests are relating to custody and parenting time.
- 15 3) Mother's attorney shall prepare the Findings and Order After Hearing.
- 16 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).
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